



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: AJ Swain
Subject: PUDC-24-18 | Project Equality – Zoning Map Amendment
Date: March 11, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/11/2024
- Public Services Committee 03/19/2024
- Second reading 03/25/2024
- Public Services Committee 04/02/2024
- Third and final reading 04/08/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their March 5, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items to be introduced on 03/11/2024:

- PUDC-24-16: Annexation
- PUDC-24-16: Assigned Zoning

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM AG AGRICULTURAL, LR LOW-DENSITY RESIDENTIAL, MR MEDIUM-DENSITY RESIDENTIAL, HI HEAVY INDUSTRIAL, AND CB COMMUNITY BUSINESS TO AG AGRICULTURAL AND LI LIGHT INDUSTRIAL FOR LAND LOCATED SOUTHWEST OF THE I-25 AND I-80 INTERCHANGE ADJACENT TO ROUNDTOP RD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 4, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as:

A Parcel Of Land Being Situated In A Portion Of Section 9, Township 13 North Range 67 West Of The 6th Principal Meridian, Laramie County, Wyoming And Being More Particularly Described As Follows: Commencing At The Southwest Corner Of Said Section 9; Thence Along The West Line Of Said Section 9 N00°11'50"E A Distance Of 1318.25 Feet To A Point On The Parcel Of Land Described In The Records Of The Laramie County Clerk At Book 2857, Page 1701 And Being The True Point Of Beginning; Thence Continuing Along Said Parcel's Boundary And Said West Line Of Section 9 N00°11'50"E A Distance Of 1318.27 Feet To The West Quarter Corner Of Said Section 9; Thence N00°05'58"E A Distance Of 2294.10 Feet To A Point On The South Right Of Way Of Interstate 80 And The Beginning Of A Non-Tangent Curve To The Right Concave To The South; Said Curve Having A Radius Of 5529.60 Feet, A Chord Bearing Of N89°09'39"E, A Chord Distance Of 55.83 Feet And A Central Angle Of 00°34'42", Thence Along Said South Right Of Way And The Arc Of Said Curve A Distance Of 55.83 Feet; Thence Continuing Along Said South Right Of Way The Following Courses And Distances: N89°29'59"E A Distance Of 3020.56 Feet, Thence S76°15'38"E A Distance Of 939.31 Feet; Thence N89°29'58"E A Distance Of 1141.24 Feet To A Point Of Intersection Of Said South Right Of Way And The West Right Of Way Of Wyoming Highway 222 (Roundtop Road); Thence Along Said West Right Of Way The Following Courses And Distances:

S00°03'36"E A Distance Of 846.53 Feet; Thence S89°51'26"E A Distance Of 27.71 Feet; Thence S00°01'29"W A Distance Of 1214.81 Feet; Thence S00°10'19"W A Distance Of 1318.43 Feet; Thence S89°28'58"W A Distance Of 5162.73 Feet To The Point Of Beginning.

is hereby changed to LI Light Industrial; and zoning classification of the real property described as:

A Parcel Of Land Being Situated In A Portion Of Sections 9, 10, 11, 12, 13, 14, 15 And 16, Township 13 North Range 67 West Of The 6th Principal Meridian, Laramie County, Wyoming And Being More Particularly Described As Follows: Commencing At The Southwest Corner Of Said Section 9; Thence N67°14'04"E A Distance Of 3481.39 Feet To The Point Of Beginning; Thence N89°28'58"E A Distance Of 1956.96 Feet To A Point On The West Right Of Way Of Wyoming Highway 222 (Roundtop Road); Thence S00°07'34"W A Distance Of 298.54 Feet; To A Point Of Intersection Of Said West Right Of Way And The North Right Of Way Of Otto Road; Thence S07°05'04"E A Distance Of 1253.07 Feet To A Point On The South Right Of Way Of The UPRR; Thence S00°34'22"W A Distance Of 61.57 Feet To A Point On The North Boundary Of Clear Creek Subdivision; Thence Along Said Clear Creek Boundary The Following Courses And Distances: Thence N74°21'45"E A Distance Of 1091.30 Feet; Thence N74°56'40"E A Distance Of 800.49 Feet; Thence N84°53'08"E A Distance Of 445.33 Feet; Thence N84°53'12"E A Distance Of 799.19 Feet; Thence S86°45'47"E A Distance Of 1942.13 Feet; Thence N88°04'15"E A Distance Of 302.13 Feet; Thence N87°37'57"E A Distance Of 1284.46 Feet; Thence N87°38'00"E A Distance Of 1124.10 Feet; Thence N37°33'40"E A Distance Of 1369.43 Feet; Thence N36°21'02"E A Distance Of 632.05 Feet; Thence N00°00'00"E A Distance Of 1665.95 Feet; To A Point Of Intersection Of Said Clear Creek Subdivision Boundary And The Right Of Way Of Interstate 25; Thence Along Said Right Of Way And Clear Creek Subdivision Boundary S75°25'24"E A Distance Of 176.05 Feet; Thence S49°43'29"E A Distance Of 103.16 Feet; Thence S49°33'34"E A Distance Of 406.01 Feet; Thence S26°38'52"E A Distance Of 400.15 Feet; Thence S01°27'56"E A Distance Of 1082.79 Feet; Thence S01°40'36"E A Distance Of 534.20 Feet; Thence Leaving Said Right Of Way S88°38'35"W A Distance Of 320.33 Feet; Thence S87°59'51"W A Distance Of 113.31 Feet; Thence S06°22'24"W A Distance Of 463.85 Feet; Thence S66°06'32"W A Distance Of 612.76 Feet; Thence S12°53'06"E A Distance Of 495.78 Feet; Thence S31°22'57"W A Distance Of 1447.90 Feet; Thence N87°58'41"W A Distance Of 152.29 Feet; Thence N88°01'00"W A Distance Of 1308.59 Feet; Thence N88°00'30"W A Distance Of 1249.02 Feet; Thence N88°00'48"W A Distance Of 903.67 Feet; Thence S86°06'55"W A Distance Of 600.98 Feet; Thence S86°06'36"W A Distance Of 1351.20 Feet; Thence S86°06'28"W A Distance Of 1220.44 Feet; Thence S85°44'38"W A Distance Of 1245.08 Feet; Thence Leaving Said Clear Creek Subdivision Boundary And Along The East Line Of Said Section 16 S00°34'22"W A Distance Of 573.57 Feet; Thence Leaving Said East Section Line S87°32'27"W A Distance Of 2910.93 Feet To A Point On The Easterly Right Of Way Of The UPRR And The Beginning Of A Non-Tangent Curve To The Right Concave Southeast; Said Curve Having A Radius Of 3485.21, A Chord Bearing Of N21°48'55"E, A Chord Distance Of 450.02 Feet And A Central Angle Of 07°24'12" Thence Along Said UPRR Right Of Way And The Arc Of Said Curve A Distance Of 450.34 Feet To The Beginning Of A Non-Tangent Curve To The Right Concave Southeast;

Said Curve Having A Radius Of 3376.89 Feet, A Chord Bearing Of N26°55'05"E A Chord Distance Of 165.15 Feet And A Central Angle Of 02°48'09" Thence Along The Arc Of Said Curve A Distance Of 165.17 Feet; Thence N28°35'22"E A Distance Of 117.72 Feet; Thence N30°22'30"E A Distance Of 95.65 Feet; Thence N32°05'53"E A Distance Of 110.27 Feet To The Beginning Of A Non-Tangent Curve To The Right Concave Southeast; Said Curve Having A Radius Of 443.18 Feet, A Chord Bearing Of N37°29'37"E, A Chord Distance Of 121.82 Feet And A Central Angle Of 15°47'59" Thence Along The Arc Of Said Curve 122.21 Feet To The Beginning A Of A Non-Tangent Curve To The Right Concave Southeast; Said Curve Having A Radius Of 602.58 Feet, A Chord Bearing Of N62°38'30"E, A Chord Distance Of 107.64 Feet, And A Central Angle Of 10°14'56" Thence Along The Arc Of Said Curve A Distance Of 107.79 Feet To The Beginning Of A Non-Tangent Curve To The Right Concave Southeast; Said Curve Having A Radius Of 1215.16 Feet, A Chord Bearing Of N64°06'53"E A Chord Distance Of 171.71 Feet And A Central Angle Of 08°06'10" Thence Along The Arc Of Said Curve A Distance Of 171.85 Feet; Thence Leaving Said UPRR Right Of Way N04°22'40"E A Distance Of 1066.80 Feet To A Point On The North Right Of Way Of Otto Road; Thence N00°10'40"E A Distance Of 1259.67 Feet.

is hereby changed to AG Agricultural.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated The North Range Business Park final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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Planning and Development Department

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CITY OF CHEYENNE PLANNING COMMISSION

March 4, 2024

STAFF REPORT

FILE: PUDC-24-18: Project Equality – Zoning Map Amendment

REQUEST: A request to rezone approximately 923.93 acres of land from AG (Agricultural) to LI (Light industrial)

LOCATION: Southwest of the I-25 and I-80 interchange adjacent to Roundtop Rd.

APPLICANT: AVI PC

AGENT: AVI PC

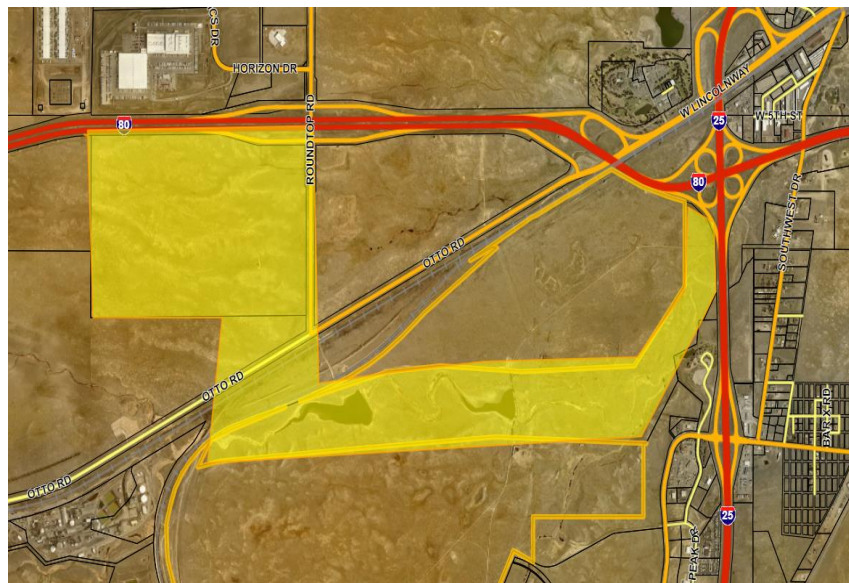
OWNER: Swan Ranch LLC

ZONING: AG (Agriculture), LR (Low-density Residential), MR (Medium-density Residential), CB (Commercial business), and HI (Heavy Industrial)

FUTURE LAND USE: Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks

PURPOSE: To allow for expansion of the North Range Business Park

PREPARED BY: AJ Swain, Planner I



RECOMMENDED MOTION:

Move to approve the rezoning of 923.93 acres of land from LR, MR, CB, HI, and AG to AG and LI zone districts as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from LR, MR, CB, HI, and AG to LI and AG for approximately 923.93 acres of land. This property is proposed to be annexed and will be assigned the LR, MR, CB, HI, and AG zone based on the underlying County zone. The applicant has requests it be rezoned to AG and LI to allow further expansion of the North Range Business Park.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks	AG (Agricultura), LR (Low-density Residential), MR (Medium-density Residential), CB (Community Business), and HI (Heavy Industrial)	Vacant
North	Industrial / Mixed-use Employment	LI, PUD, County A-2	Vacant
South	Agricultural/Rural, Mixed-use Employment, Industrial, and Open Space and Parks	PUD, LI	Vacant
East	Community Business, Mixed-use Residential, Industrial	PUD, County A-2, LI, P (Public)	Vacant
West	Agricultural/Rural Industrial	County A-2, HI	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. A companion application has been filed to bring this area into the Urban Services Boundary. The applicant is working with the Board of Public Utilities to extend infrastructure to the area. Upon approval of the related application, the property will be within the Urban Service Boundary. Development will require infrastructure improvements and investment.

The proposed zoning allows for expansion of an existing business park and allows for construction of a new data center. The proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne and **complies** with review criteria 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The subject property proposed is located in an area with regional connectivity. The location of North Range Business Park takes advantage of the location adjacent to Otto Road and the access to I-80 via Roundtop Road while maintaining a minimal impact on surrounding land uses.

The proposed zone change for the subject property **complies** with review criteria 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property is proposed to be annexed into city limits and will be assigned the AG, LR, MR, CB, and HI zones. The applicant has requested to change the zone to AG and LI. The LI zone would allow for Limited industrial uses, which includes the proposed data center. The rest of the property would be zoned to AG which would be used as an interim holding zone.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The proposed area to be rezoned as LI is adjacent Roundtop Road and I-80 allowing sufficient access to the parcel. No changes to the network are proposed. The remaining area to be rezoned AG has no proposed development and the AG zone will act as a holding zone until a development is proposed.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The application supports the intent of the LI zoning district intent and applicability. The application falls on the edge of a Business Park as designated by the Comprehensive Plan and will serve the greater Cheyenne area by accommodating a variety of uses. The LI district is

intended for uses of very Light intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. These uses do not fit into other general business or mixed-use areas due to the nature or intensity of operations. The LI district is applicable to larger land areas that are remote from other differing or incompatible land areas to minimize the potential for incompatible and negative impacts of uses in the district. The subject property must meet the applicable design requirements of the Unified Development Code.

The proposed zone change for the subject property **complies** with review criteria 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The subject property is well suited to meet all applicable standards of the LI district. The LI district allows a variety of uses and permits flexible development standards that will accommodate a variety of development proposals. Exterior building design is not regulated in the LI District.

The proposed zone change **complies** with review criteria 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The zoning map amendment application is consistent with the zoning of surrounding properties and responds to current

market demands for the subject property. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

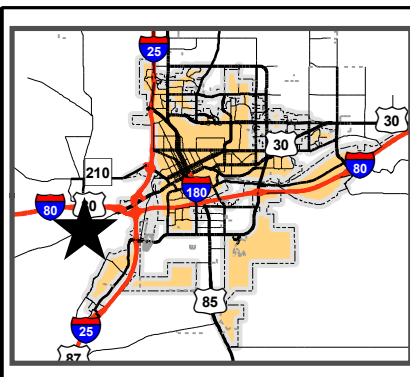
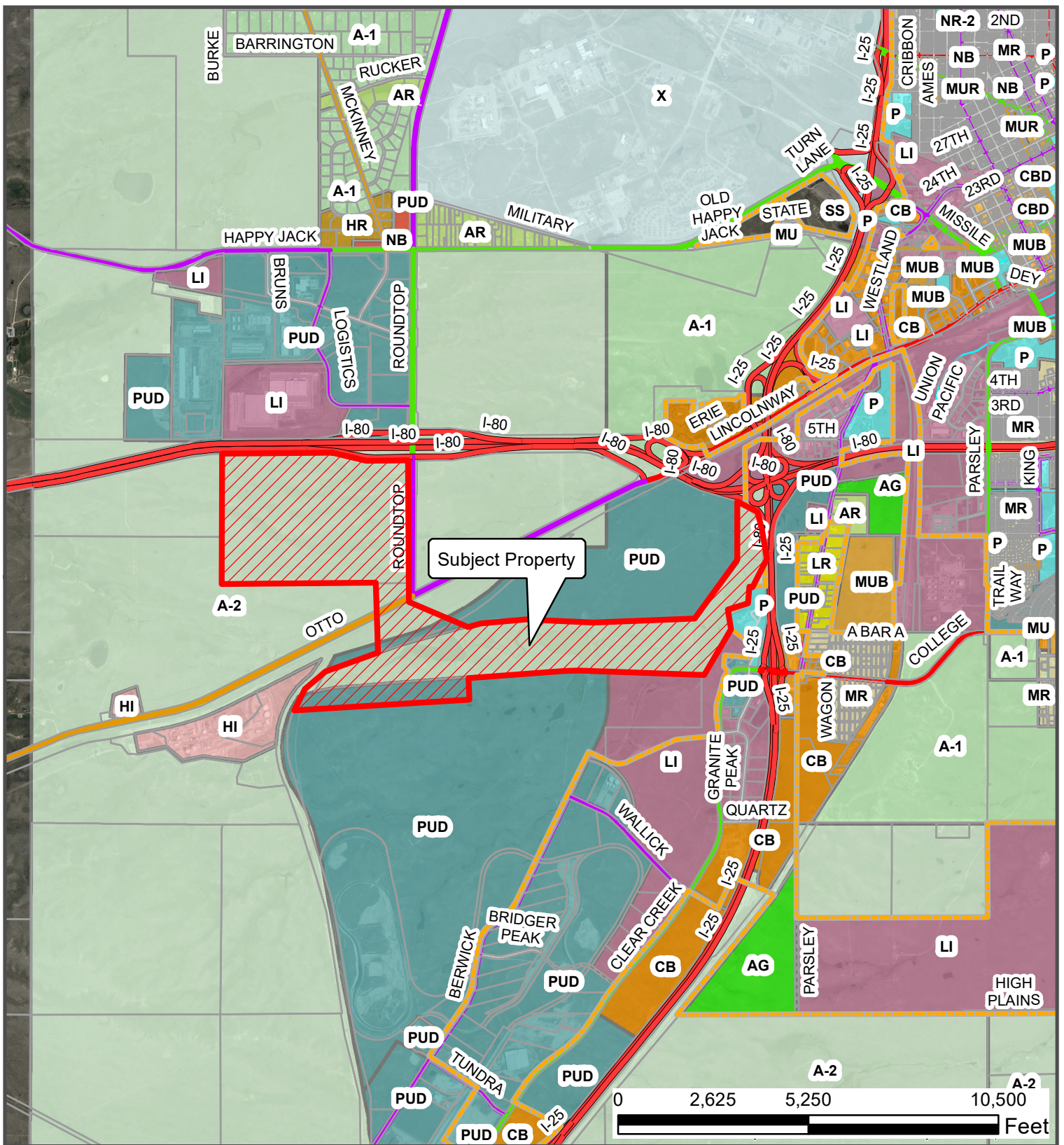
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from LR, MR, CB, HI and AG to AG and LI.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

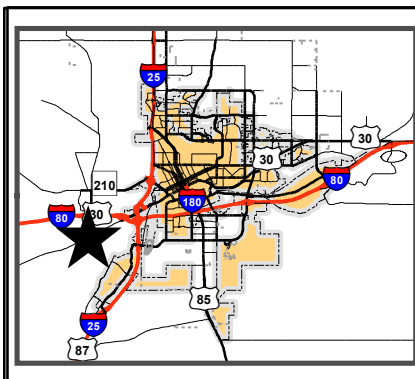
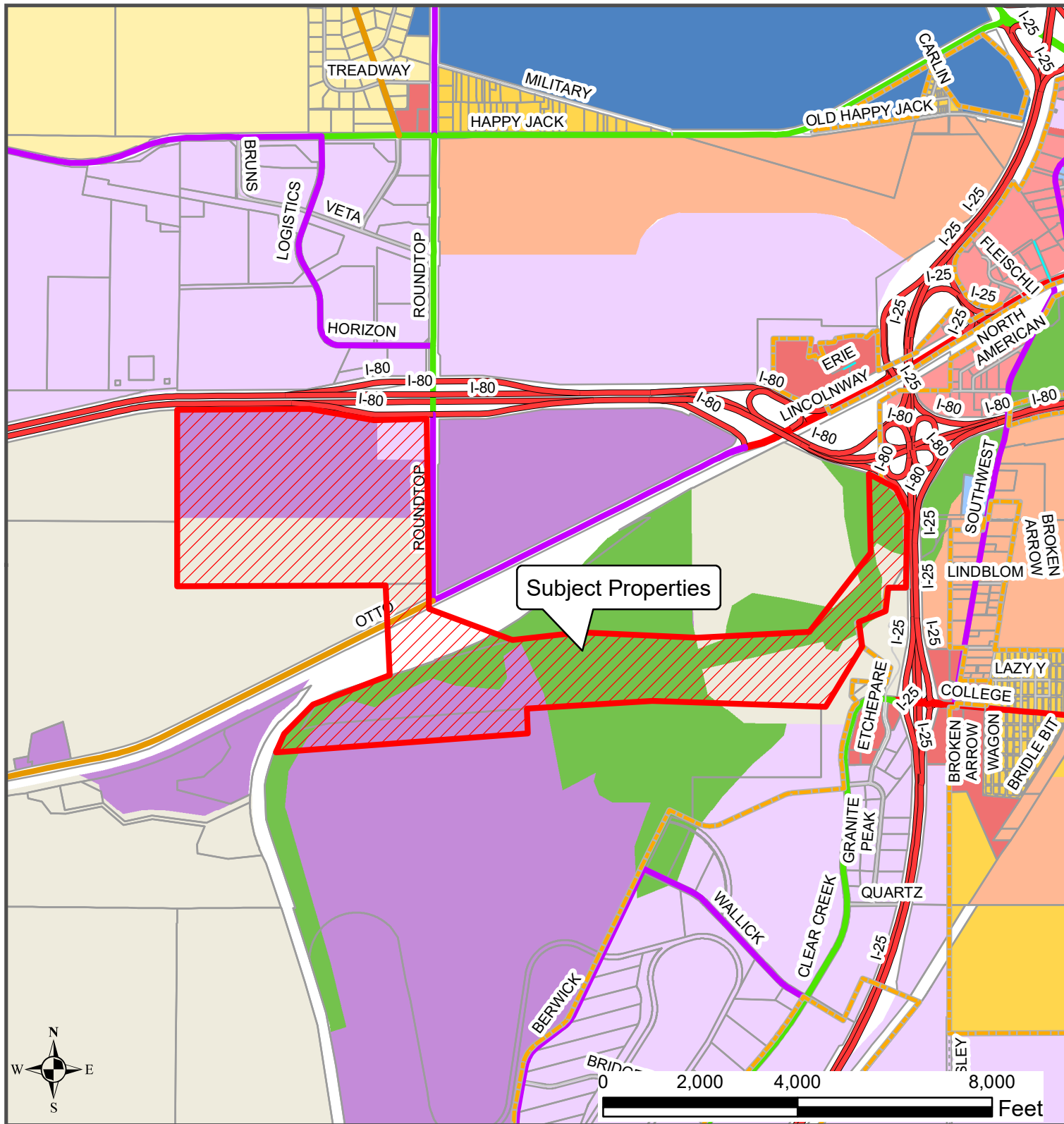


Attachment 1: Zoning Map PUDC-24-18

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



Attachment 2: Land Use Map PUDC-24-18

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | | |
|--------------------|------------------------------|---------------------------|
| City Limits | Agricultural/Rural | Industrial |
| Interstate | Rural Residential | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business |
| Minor Arterial | Urban Residential | Public and Quasi-Public |
| Major Collector | Mixed-Use Residential | Military/Federal |
| Minor Collector | Mixed-Use Commercial | Open Space and Parks |
| Local | Mixed-Use Employment | |
| Platted not built | | |
| Ownership | | |



Cheyenne, WY

2/26/2024

PUDC-24-18

Zoning Map Amendment

Status: Active

Submitted On: 1/25/2024

Primary Location

0 OTTO RD

Cheyenne, WY 82007

Owner

DYNNO NOBEL INC

6440 S MILLROCK DR STE

150 SALT LAKE CITY, UT

84121

Applicant

AVI PC

307-637-6017

avi@avipc.com

 1103 Old Town Lane #101
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name*

Proposed Zoning*

Project Equality

Other

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

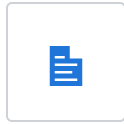


Brad Emmons

Dec 26, 2023

Attachments

	Draft Neighbor Notification Letter 4804_Zone Change Notification_.docx Uploaded by AVI PC on Jan 25, 2024 at 8:32 AM	REQUIRED
	Neighbor Notification List Equlatiy adjoiners.xlsx Uploaded by AVI PC on Jan 25, 2024 at 8:33 AM	REQUIRED
	Photos of Posted Notice cc pic.jpg Uploaded by AVI PC on Feb 15, 2024 at 7:22 AM	
	micro loa_001.pdf micro loa_001.pdf Uploaded by AVI PC on Jan 25, 2024 at 7:27 AM	
	swan loa_001.pdf swan loa_001.pdf Uploaded by AVI PC on Jan 25, 2024 at 7:27 AM	
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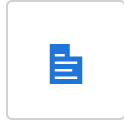


Letter of Authorization

dyno loa_001.pdf

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REQUIRED

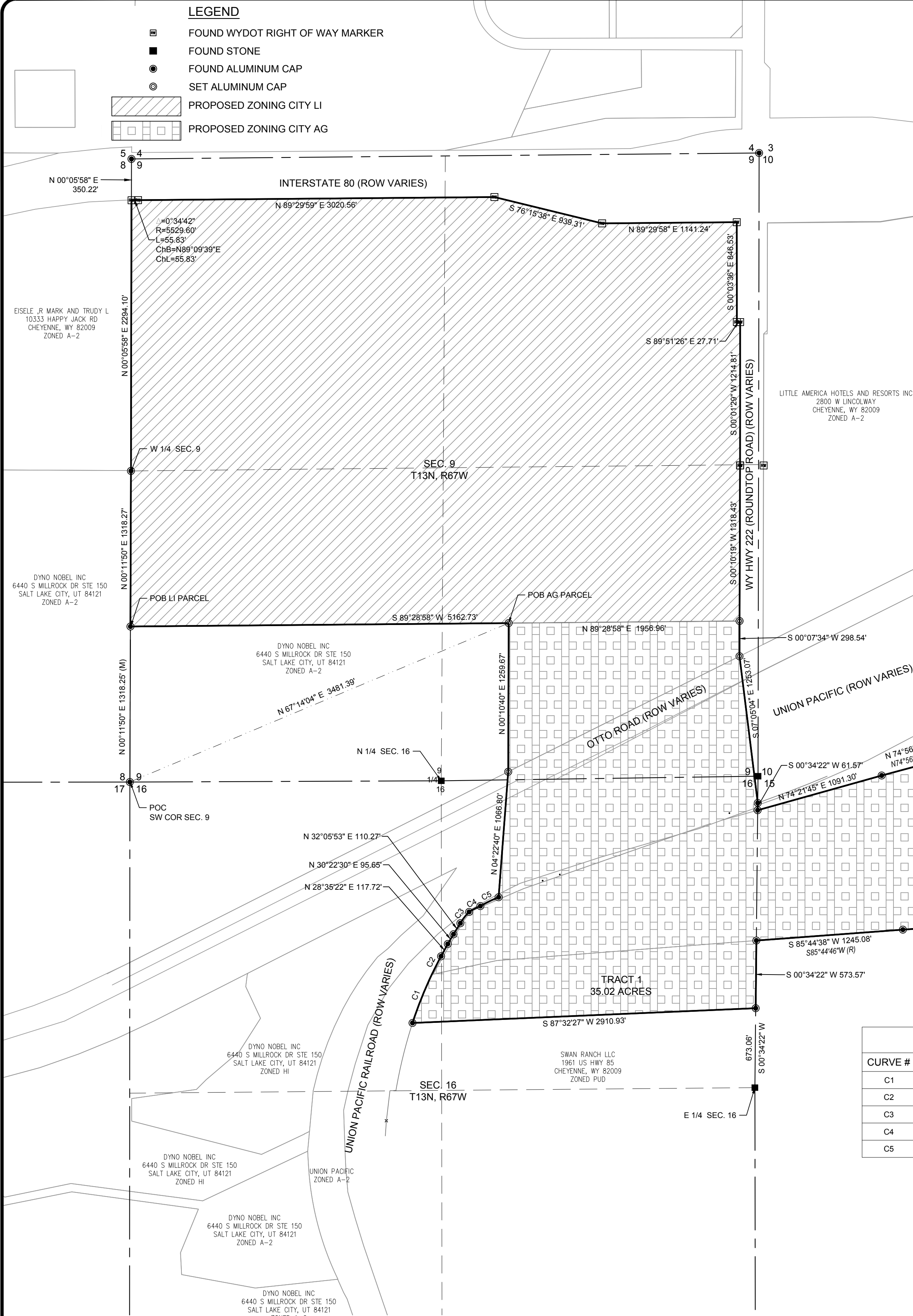


Proposed Zoning Map

4804 NRBP 14th ZONE CHANGE SUBMIT 1-25-24.pdf

Uploaded by AVI PC on Jan 25, 2024 at 8:32 AM

REQUIRED



LEGAL DESCRIPTION FOR LI PARCEL

A PARCEL OF LAND BEING SITUATED IN A PORTION OF SECTION 9, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID SECTION 9; THENCE ALONG THE WEST LINE OF SAID SECTION 9 N00°11'50"E A DISTANCE OF 1318.25 FEET TO A POINT ON THE PARCEL OF LAND DESCRIBED IN THE RECORDS OF THE LARAMIE COUNTY CLERK AT BOOK 2857, PAGE 1701 AND BEING THE TRUE POINT OF BEGINNING; THENCE CONTINUING ALONG SAID PARCELS BOUNDARY AND SAID WEST LINE OF SECTION 9 N00°11'50"E A DISTANCE OF 1318.27 FEET TO THE WEST ONE-QUARTER CORNER OF SAID SECTION 9; THENCE N00°05'58"E A DISTANCE OF 2294.10 FEET TO A POINT ON THE SOUTH RIGHT OF WAY OF INTERSTATE 80 AND THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE TO THE SOUTH; SAID CURVE HAVING A RADIUS OF 5529.60 FEET, A CHORD BEARING OF N89°09'39"E, A CHORD DISTANCE OF 55.83 FEET AND A CENTRAL ANGLE OF 0°34'42"; THENCE ALONG SAID SOUTH RIGHT OF WAY AND THE ARC OF SAID CURVE A DISTANCE OF 55.83 FEET; THENCE CONTINUING ALONG SAID SOUTH RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: N89°29'59"E A DISTANCE OF 3020.56 FEET, THENCE S76°15'38"E A DISTANCE OF 939.31 FEET, THENCE N89°29'58"E A DISTANCE OF 1141.24 FEET TO A POINT OF INTERSECTION OF SAID SOUTH RIGHT OF WAY AND THE WEST RIGHT OF WAY OF WYOMING HIGHWAY 222 (ROUNDTOP ROAD); THENCE ALONG SAID WEST RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: S00°03'36"E A DISTANCE OF 846.53 FEET, THENCE S89°51'26"E A DISTANCE OF 27.71 FEET, THENCE S00°01'29"W A DISTANCE OF 1214.81 FEET, THENCE S00°10'19"W A DISTANCE OF 1318.43 FEET, THENCE S89°28'58"W A DISTANCE OF 5162.73 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 418.76 ACRES MORE OR LESS.

LEGAL DESCRIPTION FOR AG PARCEL

A PARCEL OF LAND BEING SITUATED IN A PORTION OF SECTIONS 9, 10, 11, 12, 13, 14, 15 AND 16, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

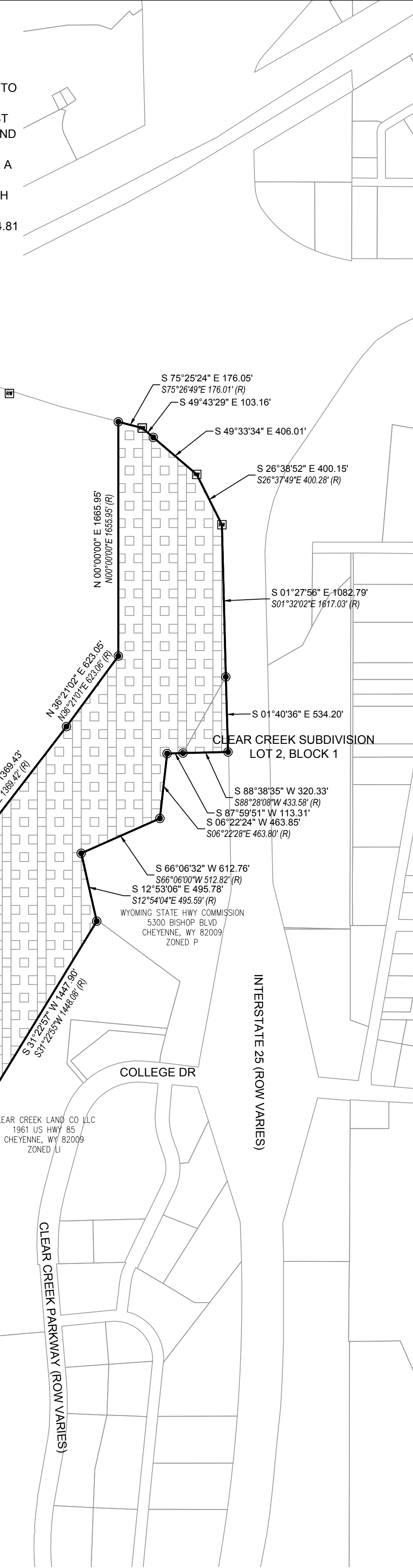
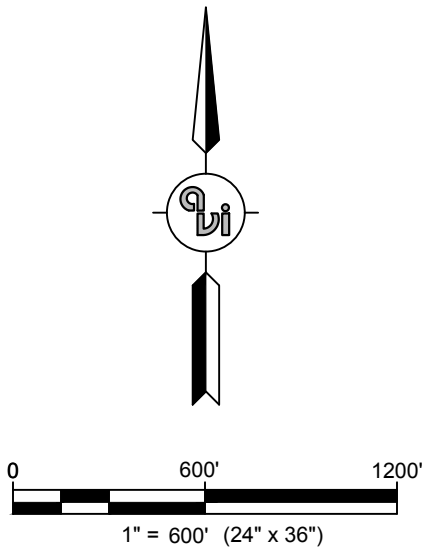
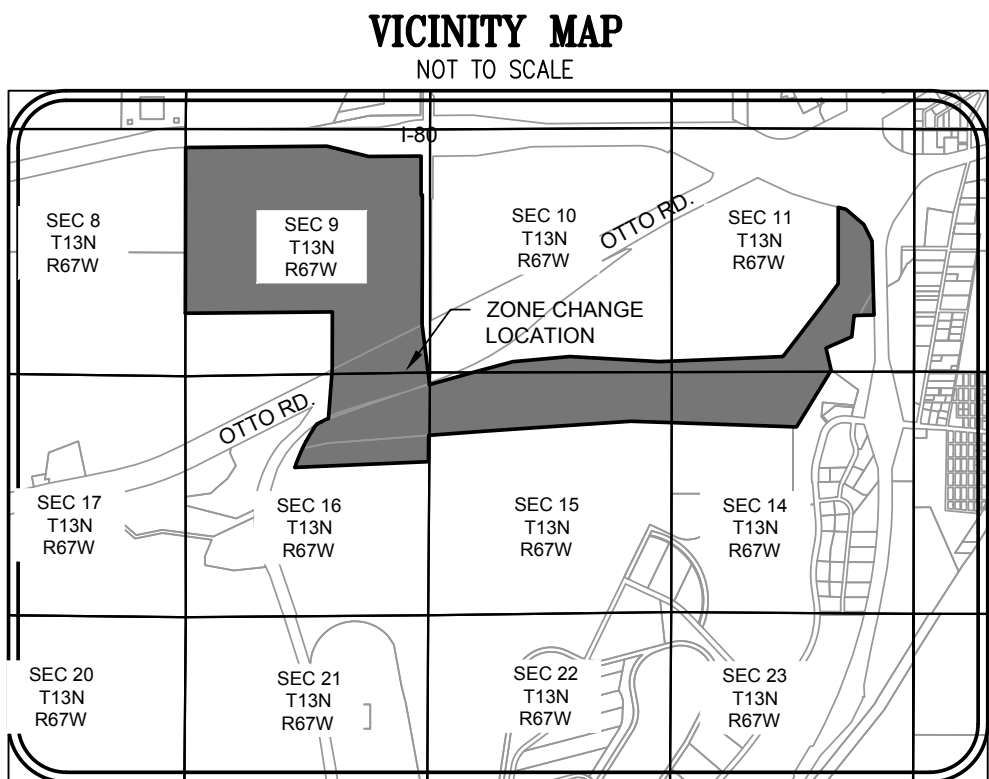
COMMENCING AT THE SOUTHWEST CORNER OF SAID SECTION 9; THENCE N67°14'04"E A DISTANCE OF 3481.39 FEET TO THE POINT OF BEGINNING; THENCE N89°28'58"E A DISTANCE OF 1956.96 FEET TO A POINT ON THE WEST RIGHT OF WAY OF WYOMING HIGHWAY 222 (ROUNDTOP ROAD); THENCE S00°07'34"W A DISTANCE OF 298.54 FEET; TO A POINT OF INTERSECTION OF SAID WEST RIGHT OF WAY AND THE NORTH RIGHT OF WAY OF OTTO ROAD; THENCE S00°05'04"E A DISTANCE OF 1253.07 FEET TO A POINT ON THE SOUTH RIGHT OF WAY OF THE UPRR; THENCE S00°34'22"W A DISTANCE OF 61.57 FEET TO A POINT ON THE NORTH BOUNDARY OF CLEAR CREEK SUBDIVISION; THENCE ALONG SAID CLEAR CREEK BOUNDARY THE FOLLOWING COURSES AND DISTANCES: THENCE N74°21'45"E A DISTANCE OF 1091.30 FEET, THENCE N74°56'04"E A DISTANCE OF 800.49 FEET, THENCE N84°53'08"E A DISTANCE OF 445.33 FEET, THENCE N84°53'12"E A DISTANCE OF 798.19 FEET, THENCE N86°45'47"E A DISTANCE OF 1942.13 FEET, THENCE N88°04'15"E A DISTANCE OF 302.13 FEET, THENCE N87°37'57"E A DISTANCE OF 1284.46 FEET, THENCE N87°38'00"E A DISTANCE OF 1124.10 FEET, THENCE N37°33'40"E A DISTANCE OF 1369.43 FEET, THENCE N36°21'02"E A DISTANCE OF 632.05 FEET, THENCE N00°00'00"E A DISTANCE OF 1665.95 FEET; TO A POINT OF INTERSECTION OF SAID CLEAR CREEK SUBDIVISION BOUNDARY AND THE RIGHT OF WAY OF INTERSTATE 25; THENCE ALONG SAID RIGHT OF WAY AND CLEAR CREEK SUBDIVISION BOUNDARY S75°25'24"E A DISTANCE OF 176.05 FEET, THENCE S49°43'29"E A DISTANCE OF 103.16 FEET, THENCE S49°33'34"E A DISTANCE OF 406.01 FEET, THENCE S26°38'52"E A DISTANCE OF 400.15 FEET, THENCE S01°27'56"E A DISTANCE OF 1082.70 FEET, THENCE S01°40'36"E A DISTANCE OF 534.20 FEET, THENCE LEAVING SAID RIGHT OF WAY S88°38'35"W A DISTANCE OF 320.33 FEET, THENCE S87°59'51"W A DISTANCE OF 113.31 FEET, THENCE S06°22'24"W A DISTANCE OF 463.85 FEET, THENCE S66°06'32"W A DISTANCE OF 612.76 FEET, THENCE S12°53'06"E A DISTANCE OF 495.78 FEET, THENCE S31°22'57"W A DISTANCE OF 1447.90 FEET, THENCE N87°58'41"W A DISTANCE OF 152.29 FEET, THENCE N88°01'00"W A DISTANCE OF 1308.59 FEET, THENCE N88°00'30"W A DISTANCE OF 1249.02 FEET, THENCE N88°00'48"W A DISTANCE OF 903.67 FEET, THENCE S86°06'55"W A DISTANCE OF 600.98 FEET, THENCE S86°06'36"W A DISTANCE OF 1361.20 FEET, THENCE S86°06'28"W A DISTANCE OF 1220.44 FEET, THENCE S85°44'38"W A DISTANCE OF 1245.08 FEET, THENCE LEAVING SAID CLEAR CREEK SUBDIVISION BOUNDARY AND ALONG THE EAST LINE OF SAID SECTION 16 S00°34'22"W A DISTANCE OF 573.57 FEET, THENCE LEAVING SAID EAST SECTION LINE S87°32'27"W A DISTANCE OF 2910.93 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF THE UPRR AND THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 3485.21, A CHORD BEARING OF N21°48'55"E, A CHORD DISTANCE OF 450.02 FEET AND A CENTRAL ANGLE OF 07°24'12" THENCE ALONG SAID UPRR RIGHT OF WAY AND THE ARC OF SAID CURVE A DISTANCE OF 450.34 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 3376.89 FEET, A CHORD BEARING OF N26°55'05"E A CHORD DISTANCE OF 165.15 FEET AND A CENTRAL ANGLE OF 02°48'09" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 165.17 FEET, THENCE N28°35'22"E A DISTANCE OF 117.72 FEET, THENCE N30°22'30"E A DISTANCE OF 95.65 FEET, THENCE N32°05'53"E A DISTANCE OF 110.27 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 443.18 FEET, A CHORD BEARING OF N37°29'37"E, A CHORD DISTANCE OF 121.82 FEET AND A CENTRAL ANGLE OF 15°47'59" THENCE ALONG THE ARC OF SAID CURVE 122.21 FEET TO THE BEGINNING A OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 602.58 FEET, A CHORD BEARING OF N62°38'30"E, A CHORD DISTANCE OF 107.64 FEET, AND A CENTRAL ANGLE OF 10°14'56" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 107.79 FEET TO THE BEGINNING OF A NON-TANGENT CURVE TO THE RIGHT CONCAVE SOUTHEAST; SAID CURVE HAVING A RADIUS OF 1215.16 FEET, A CHORD BEARING OF N64°06'53"E A CHORD DISTANCE OF 171.71 FEET AND A CENTRAL ANGLE OF 08°06'10" THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 171.85 FEET, THENCE LEAVING SAID UPRR RIGHT OF WAY N04°22'40"E A DISTANCE OF 1066.80 FEET TO A POINT ON THE NORTH RIGHT OF WAY OF OTTO ROAD; THENCE N00°10'40"E A DISTANCE OF 1259.67 FEET..

SAID PARCEL OF LAND CONTAINS 505.17 ACRES MORE OR LESS

CURVE TABLE					
CURVE #	ARC LENGTH	RADIUS	DELTA ANGLE	CHORD BEARING	CHORD LENGTH
C1	450.34	3485.21	7°24'12"	N21°48'55"E	450.02
C2	165.17	3376.89	2°48'09"	N26°55'05"E	165.15
C3	122.21	443.18	15°47'59"	N37°29'37"E	121.82
C4	107.79	602.58	10°14'56"	N62°38'30"E	107.64
C5	171.85	1215.16	8°06'10"	N64°06'53"E	171.71

NOTES:

- EXISTING ZONING: A2 & COUNTY PUD
- PROPOSED ZONING: CITY LI & AG
- PROPOSED USE: TO BE DETERMINED
- NUMBER OF TRIPS PER DAY: TO BE DETERMINED
- NEAREST FIRE HYDRANT: ALONG COLLEGE DRIVE AND CLEAR CREEK PARKWAY



NO.	REVISION	DATE

PREPARED FOR:
CHEYENNE LEADS
121 W. 15TH ST. SUITE 304
CHEYENNE, WY 82001

PROJECT:
NORTH RANGE BUSINESS PARK, 14TH FILING

DRAWING TITLE:
ZONE CHANGE

vi ENGINEERING
PLANNING
SURVEYING
INC.

307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPIC.COM

DATE: Jan 25, 2024

DRAWN BY:

DESIGNED BY:

CHECKED BY:

JOB NO.: 4804

DRAWING NO. 1 OF 1

ZONE CHANGE
FOR
PROJECT EQUALITY
A PARCEL OF LAND BEING SITUATED IN A PORTION OF SECTIONS 9, 10, 11, 12, 13, 14, 15 AND 16, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING
PREPARED JANUARY 2024